

1 that Plaintiff was at fault for causing this accident.

2 Plaintiff called Officer Fernandez to the
3 stand in his case.

4 Officer Fernandez testified that Plaintiff
5 was traveling the wrong way; that he was at fault;
6 that he violated the Vehicle Code and that he caused
7 his own injuries.

8 And, in fact, Officer Fernandez testified
9 that the only reason he didn't cite the Plaintiff was
10 because he caused his own injuries.

11 Plaintiff himself got on the stand and
12 testified and actually reiterated multiple times in
13 his closing today that he was told at the scene
14 multiple times that he was at fault for causing this
15 accident.

16 You saw body cam footage. Mr. Rosario argued
17 it is hearsay but it is not hearsay when you have the
18 body cam footage of Mr. Rosario himself telling
19 officers he was traveling the wrong way in the green
20 lane. That is on the video.

21 You saw footage of five different
22 San Francisco Police Department officers conducting an
23 investigation and all determining that Plaintiff was
24 going the wrong way, that it caused the subject
25 incident and that he caused his own injuries.

26 In fact, you heard Officer Thompson say in
27 the body cam footage: Well, no wonder he didn't see
28 him -- that is, my client -- well, no wonder he didn't